



# Marketers and Healthcare Providers in Texas, Virginia and South Carolina Agree to Pay Over \$1.1M to Settle Laboratory Kickback Allegations



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**For Immediate Release**

Office of Public Affairs

Two laboratory marketers — Shahram Naghshbandi, of Fort Worth, Texas, and John Bello, of Chesterfield, Virginia; three physicians — Dr. Abbasalom Ghermay, of Plano, Texas; Dr. Daniel Theesfeld, of Longview, Texas; and Dr. James Cook, of Richmond, Virginia; and medical practice owner Troy Belton, of Columbia, South Carolina, and associated entities, have agreed to pay a total of \$1,137,914 to resolve False Claims Act allegations they took part in laboratory kickback schemes in violation of the Anti-Kickback Statute. The parties have agreed to cooperate with the Justice Department's investigations of, and litigation against, other participants in the alleged schemes.

"Monetary inducements to healthcare providers undermine the integrity of taxpayer-funded healthcare programs and can improperly influence healthcare providers' decision-making," said Principal Deputy Assistant Attorney General Brian M. Boynton, head of the Justice Department's Civil Division. "We will continue to hold accountable individuals, as well as companies, who disregard their legal obligations and participate in illegal kickback schemes."

The Anti-Kickback Statute prohibits offering, paying, soliciting or receiving remuneration to induce referrals of items or services covered by Medicare, Medicaid and other federally funded healthcare programs. The Anti-Kickback Statute is intended to ensure that medical providers' judgments are not compromised by improper financial incentives and are instead based on the best interests of their patients.

The Anti-Kickback Statute ascribes liability to parties on both sides of an impermissible kickback arrangement. The settlements announced today resolve allegations that laboratory marketers and their companies paid or conspired to pay kickbacks to doctors, and that doctors and their companies

received kickbacks in return for laboratory referrals. The alleged kickbacks resulted in the submission of false or fraudulent laboratory testing claims to Medicare in violation of the False Claims Act.

### **The Marketer Settlements**

The settlements announced today resolve allegations that two marketers paid kickbacks in violation of the Anti-Kickback Statute to induce healthcare providers to make referrals to laboratories in New Jersey, Florida, Virginia and Texas.

**Shahram Naghshbandi** agreed to pay \$400,000 to resolve allegations that he entered into illegal schemes to pay kickbacks to doctors for laboratory referrals. From August 2018 through July 2022, in return for Naghshbandi and his marketing company arranging for and/or recommending that several healthcare providers order laboratory testing from three clinical laboratories in Kenilworth, New Jersey; Dallas, Texas; and Orlando, Florida, these laboratories allegedly paid commissions to Naghshbandi's marketing company based on reimbursements from the health care providers' laboratory testing referrals. To induce these healthcare providers to order testing, Naghshbandi allegedly paid them thousands of dollars in kickbacks disguised as investment distributions from purported management service organizations (MSOs). In addition to the monetary settlement, Naghshbandi has been excluded from federal healthcare programs for 10 years.

**John Bello** and his marketing company, **RiteRx4U LLC**, agreed to pay \$140,000 to resolve allegations that, from February 1, 2019, through February 28, 2021, they paid Dr. James Cook, of Richmond, Virginia, thousands of dollars in kickbacks to induce Dr. Cook to order testing from two clinical laboratories in Kenilworth, New Jersey, and Chester, Virginia. Bello and RiteRx4U allegedly sought to disguise these payments as purported investment returns when they were in fact based on the volume and value of Dr. Cook's referrals to these laboratories.

### **The Healthcare Provider Settlements**

The settlements announced today also resolve allegations that healthcare providers received kickbacks in violation of the Anti-Kickback Statute in return for making referrals to laboratories in New Jersey, Virginia and Texas.

**Dr. Abbasalom Ghermay** agreed to pay \$228,482 to resolve allegations that, from January 2016 to November 2018, he received thousands of dollars in payments from a purported MSO in return for ordering testing from a laboratory in Houston, Texas.

**Dr. James Cook** and his medical practice, **Family Medical Centers, P.C.**, agreed to pay \$206,987 to resolve allegations that, from February 2019 to February 2021, they received thousands of dollars in payments from marketer RiteRx4U LLC in return for ordering testing from two clinical laboratories in Kenilworth, New Jersey, and Chester, Virginia. Cook and his practice allegedly received thousands of dollars in payments from the marketer that were disguised as purported investment returns but in fact were based on the volume and value of Cook's testing referrals to the two laboratories.

**Dr. Daniel Theesfeld** and his medical practice, **H8 Pain Management Center of Texas PLLC**, agreed to pay \$99,125 to resolve allegations that, from April 2017 to September 2018, they received thousands of dollars in payments from a purported MSO in return for ordering testing from a laboratory in Houston, Texas.

**Advantage Medical Group**, an outpatient clinic in Columbia, South Carolina, and its owner, **Troy Belton**, agreed to pay \$63,320 to resolve allegations that from June 2017 to July 2022, they received thousands of dollars in payments from two purported MSOs in return for ordering testing from three laboratories in Kenilworth, New Jersey; Dallas, Texas; and Denton, Texas.

"Kickbacks can harm taxpayer-funded healthcare programs and improperly influence healthcare providers' medical decisions," said U.S. Attorney Philip R. Sellinger for the District of New Jersey. "Patients should always be able to rely on their medical professionals making decisions in the patients' best interest, and not for any monetary reason. We will continue to pursue all those involved in illegal kickback schemes."

"Individuals and entities that participate in the federal health care system are required to obey the laws meant to preserve the integrity of program funds and the provision of appropriate, quality services to patients," said Special Agent in Charge Naomi Gruchacz of the Department of Health and Human Services Office of Inspector General (HHS-OIG). "HHS-OIG will continue working with law enforcement to investigate parties alleged to have violated the Anti-Kickback Statute."

The settlements were the result of a coordinated effort between the Civil Division's Commercial Litigation Branch, Fraud Section and the U.S. Attorney's Office for the District of New Jersey, with assistance from HHS-OIG.

Senior Trial Counsel Christopher Terranova of the Civil Division's Commercial Litigation Branch, Fraud Section and Assistant U.S. Attorney Kruti Dharja for the District of New Jersey handled the settlements.

The United States has recovered over \$53 million relating to conduct involving MSO kickbacks to health care providers, including False Claims Act settlements with 48 physicians. The government's pursuit of these matters illustrates the government's emphasis on combating health care fraud. One of the most powerful tools in this effort is the False Claims Act. Tips and complaints from all sources about potential fraud, waste, abuse and mismanagement can be reported to HHS at 1-800-HHS-TIPS (800-447-8477).

*The claims resolved by the settlements are allegations only. There has been no determination of liability.*

[View the Naghshbandi Settlement here.](#)

[View the Bello Settlement here.](#)

[View the Cook Settlement here.](#)

[View the AMG Settlement here.](#)

[View the Theesfeld Settlement here.](#)

[View the Ghermay Settlement here.](#)

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Topic

FALSE CLAIMS ACT

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